

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
ANGEL GUTIERREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER DUTCH SCHULTZ

Defendants.
-----X

SUMMONS

Index No.:

Plaintiff Designates Queens County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

OFFICER DUTCH SCHULTZ
Patrol Borough Queens North CRT
Randalls Island
5 Central Road
New York, NY 10035

Dated: New York, New York
April 4, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: Cody Warner
CODY WARNER, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X	:	
ANGEL GUTIERREZ,	:	
	:	
	:	VERIFIED COMPLAINT
Plaintiff,	:	
	:	
-against-	:	Index No.:
	:	
THE CITY OF NEW YORK,	:	
POLICE OFFICER DUTCH SCHULTZ	:	
	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, ANGEL GUTIERREZ, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants' unlawful arrest of Angel Gutierrez ("Plaintiff") on February 25, 2023. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorneys' fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in Queens County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in Queens County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York

3. This action was commenced within one year after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. Plaintiff is a thirty-eight-year-old man who resides in Queens County, New York.

6. Defendant Dutch Schultz was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of Defendant City.

7. Defendant Schultz is sued in his individual and official capacities. At all times mentioned herein, Defendant Schultz acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

8. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

9. On February 25, 2023, Plaintiff was involved in a car accident in front of 68-40 Austin Street in Queens, New York.

10. NYPD officers, including Defendant Schultz, responded to the scene.

11. Defendant Schultz accused Plaintiff of having an invalid license plate on his vehicle.

12. Plaintiff did not have an invalid license plate on his vehicle.

13. Plaintiff had not committed any offense.

14. Defendant Schultz arrested Plaintiff.

15. Defendant Schultz’s arrest of Plaintiff was not supported by probable cause or otherwise privileged.

16. Plaintiff was transported in custody to the 112th Precinct and then Queens Central Booking.

17. The Queens County District Attorney's Office declined to prosecute Plaintiff and the matter was dismissed.

18. Plaintiff was incarcerated for twenty-four hours before he was released from Queens Central Booking.

19. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, suffering humiliation, and deprivation of his constitutional rights.

CAUSES OF ACTION

First Claim

False Arrest Under 42 U.S.C. § 1983

20. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated therein.

21. Defendant Schultz deprived Plaintiff of his rights afforded by the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully arresting and detaining Plaintiff.

22. The wrongful and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without probable cause, without a warrant, and without privilege or consent.

Second Claim

Governmental Entity "Monell" Liability Under 42 U.S.C. § 1983 Against Defendant City

23. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

24. Defendant City maintained a policy, custom, or practice that caused Plaintiff to be deprived of his constitutional right to be free from illegal searches and seizures.

25. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising decision or policymaker must, or should, have been aware of.

26. Defendant City's supervisors, decision or policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who encounter Defendant City's employees.

27. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;
- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney's fees and the costs and disbursements of this action; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
April 4, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
Cody Warner, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

I, **CODY WARNER**, an attorney admitted to practice in the courts of New York State, affirm that I am the principal attorney of the firm **CODY WARNER, P.C.**, counsel of record for Plaintiff in the within action. I have read the foregoing and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Petitioner is because Petitioner resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: April 4, 2024
New York, NY

Cody Warner

Cody Warner, Esq.
Attorney for Plaintiff

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

ANGEL GUTIERREZ,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER DUTCH SCHULTZ

Defendants.

SUMMONS AND VERIFIED COMPLAINT

CODY WARNER, P.C.

By: Cody Warner
Attorney for Plaintiff
11 Broadway
Suite 615
New York, NY
Tel. 212-627-3184
